

21STCV41392 21STCV41392

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C08%2F12%2F2026

Source SHA-256: 60c831eaa73b935c3ac5990d4abcd19553a5efa8780ca29e725595ee4c9cc7dc

Case Number: 21STCV41392 Hearing Date: August 12, 2026 Dept: 512

HEARING DATE: Weds., August 12, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Svetnoy

v. Rust Movie Productions LLC, FAC FILED: 04-26-23

et al.

CASE NUMBER: 21STCV41392

NOTICE: OK

PROCEEDINGS: APPLICATION TO APPEAR PRO HAC VICE

MOVING PARTY:

Defendants Alexander R. Baldwin III

and El Dorado Pictures, Inc.

RESP. PARTY: Plaintiff Serge Svetnoy

APPLICATION

TO APPEAR PRO HAC VICE

(CRC, rule

9.40)

TENTATIVE RULING:

Defendants Alexander R.

Baldwin III and El Dorado Pictures, Inc.'s Application of Matthew D. Kelly to Appear as Counsel Pro Hac Vice and Application is GRANTED.

Moving parties are ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of August 9, 2026 ☐ Late ☒
None

REPLY: None
filed as of August 9, 2026 ☐ Late ☒
None

ANALYSIS:

I.
Background

On April 26, 2023, Plaintiff Serge Svetnoy ("Plaintiff") filed a First Amended Complaint against Defendants Rust Movie Productions, LLC; Hannah Gutierrez Reed; Sarah Zachry; Seth Kenny; Dave Halls; El Dorado Pictures, Inc.; Cavalry Media, Inc.; Thomasville Pictures, LLC; Brittany House Pictures; Short Porch Pictures, LLC; 3rd Shift Media, LLC; Alexander R. Baldwin, III; Ryan Donnell Smith; Nathan Klingher; Ryan Winterstern; Anjul Nigam; Matthew Delpiano; Gabrielle Pickle; Katherine "Row" Walters; Allen Cheney; Chris M.B. Sharp; Jennifer Lamb; and Emily Salveson ("Defendants") and Does 1-200, alleging causes of action for Negligence, Assault, and Intentional Infliction of Emotional Distress. (FAC.)

On July 17, 2026, Moving Defendants

Baldwin and El Dorado Pictures ("Moving Defendants") filed the instant Application of Matthew D. Kelly to Appear as Counsel Pro Hac Vice (the "Application"), which requests the Court permit Matthew D. Kelly ("Applicant") to appear as counsel pro hac vice in the instant matter.

On July 29, 2026, Plaintiff filed a Non-Opposition, stating Plaintiff does not oppose the instant Application.

To date, no other response or opposition has been filed to the Application.

II.

Legal
Standard

For out-of-state counsel to appear before a California court as counsel pro hac vice, out-of-state counsel must be (1) a member in good standing of another state bar, (2) eligible to practice in any United State court or the highest court in another jurisdiction, and (3) associated with an active member of the California Bar as attorney of record. (Cal. Rules of Court, rule 9.40(a).)

Further, the application must state:¿

¿

(1) The applicant's residence and office address;¿ ¿

(2) The courts to which the applicant has been admitted to practice and the dates of admission;¿

(3) That the applicant is a licensee in good standing in those courts;¿

(4) That the applicant is not currently suspended or disbarred in any court;¿

(5) The title of each court and cause

in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and

(6) The name, address, and telephone

number of the active licensee of the State Bar of California who is attorney of record.

(Cal. Rules of Court, rule

9.40(d).)

Out-of-state counsel must file a

verified application and a proof of service, which provides that a copy of the application and a notice of hearing have been served on all parties and on the California Bar at its San Francisco office. (Cal. Rules of Court, rule 9.40(c)(1).)

No person is eligible to appear as

counsel pro hac vice if the person is: (1) A resident of the State of California; (2) Regularly employed in the State of California; or (3) Regularly engaged in substantial business, professional, or other activities in the State of California. (Cal. Rules of Court, rule 9.40(a).)

Out-of-state counsel is also subject

to the California Bar's Rules of Professional Conduct. (Cal. Rules of Court, rule 9.40(f).)

Finally, any application fee set by

the State Bar of California must be paid by counsel pro hac vice. (Cal. Rules of Court, rule 9.40(e).)

III.

Discussion

Moving Defendants submit a verified

Application for the Applicant to appear pro hac vice.

Here,

the verified Application provides the following information: (1) the Applicant's residential address is located in Milford, Michigan and office address is 233 South Wacker Drive, Suite 5500, Chicago, Illinois, 60606; (2) the Applicant was admitted to the State Bar of Illinois in 2009; the State Bar of Michigan in 2022; and various federal courts in 2012, 2015-2016, 2021, and 2023-2024; (3) the Applicant is in good standing in each of the courts the Applicant has been admitted; (4) the Applicant has applied to appear pro hac vice in California in Case No. 30 2025-01522348-CU-FR-CJC in the preceding two years; and (5) Arthur J. Chapman, California State Bar No. 79866, and Segal McCambridge Singer Mahoney are the attorneys of record with the following address and telephone numbers: Segal McCambridge Singer Mahoney, 10866 Wilshire Blvd., Suite 400, Los Angeles, California, 90024; phone number (310) 207-7722. (Verified App., Cal. Rules of Court, rule 9.40.)

Further,

the Application states that the Applicant paid the pro hac vice fee to the State Bar of California and served the Application on the State Bar of California Office of Admissions. (Verified App., p. 3; Cal. Rules of Court, rule 9.40.)

Finally, Moving Defendants file proof of service demonstrating the Application and notice of hearing were served on Plaintiffs, all responding parties, and the State Bar of California. (See Verified App., p. 3; Cal. Rules of Court, rule 9.40(c)(1).)

Thus, the unopposed Application is
GRANTED.

IV.

Conclusion & Order

For the foregoing reasons,
Defendants Alexander R. Baldwin III and El Dorado Pictures, Inc.'s Application of Matthew D. Kelly to Appear as Counsel Pro Hac Vice and Application is
GRANTED.

Moving parties are ordered

to give notice.